destroyed thousands of livelihoods. All this has weakened the public's faith in the higher judiciary.

In one respect, today's justice system is even worse than its earlier conservative avatar. Earlier, judges usually took a lenient view of personal liberties, including the physical person's rights, and did not put an overly stringent interpretation on crime and punishment, with harsh sentences. For instance, the perpetrator of a crime was not equated with someone who conspires to commit it or is accessory to it.

Thus, Gopal Godse was not hanged for Gandhi's assassination, although he was fully complicit in that conspiracy. In 1983, the Supreme Court spelt out death penalty guidelines in the Machhi Singh case: as a rule, a murderer must be sentenced to life; capital punishment must be awarded in 'the rarest of rare' cases—where murder is committed in an extremely brutal, grotesque, diabolical or revolting manner, or to punish a particular caste or community, and so on.[1]

But in recent years, in response to terrorism, the judiciary's stance has considerably hardened. A decisive break was the Kehar Singh case (1989),[2] when a conspirator was sentenced to death, although he did not assassinate Indira Gandhi. This represents a definite erosion of liberal values, at a time when the abolition of the death penalty has emerged the world over as a precondition for a country being considered civilized.

Today, we are witnessing yet another, perhaps even more distressing, retrogression: in Mohammad Afzal's case pertaining to the Parliament House attack of 2001. Afzal's appeal against his death sentence was rejected by the Delhi High Court and the Supreme Court. Served with the infamous 'black warrant',[3] he was sentenced to be executed on 20 October 2006.

Afzal's hanging will be a grave miscarriage of justice and an offence to civilized conscience. It will have a profoundly negative impact on opinion in Kashmir at this extremely delicate juncture in the peace process. The widespread, spirited protests in the Kashmir valley are only the first sign of this.

The demand of all parties in Kashmir, barring the Bharatiya Janata Party (BJP), for clemency for Afzal represents the pervasive view that he was not directly responsible for the attack; nor is he beyond the pale of reform. The Indian state will commit a huge blunder if it does not prevent Afzal's hanging.

Lest it be contended that this is only a 'political' argument, considering the jurisprudential issues, it is nobody's case that Afzal personally committed